

LAW AND MOTION TENTATIVE RULINGS

DATE: AUGUST 7, 2026 TIME: 8:30 A.M.

No. 23CV00741

KRUEGER v. FORMICO

PLAINTIFF'S MOTION TO ENFORCE SETTLEMENT

Parties to appear.

At the last hearing on this motion, on May 5, 2026, the parties were ordered to take the following actions:

- Plaintiff directed to release the liens on 1100 Graham Hill Road.
- Defendant directed to complete the sale of 1100 Graham Hill Road.
- Defendant directed to identify a real property holding with at least \$1,000,000.00 in equity to be exchanged from 1100 Graham Hill Road as security.
- No liens to be recorded by defendant without Court approval.

The parties are ordered to appear to provide the Court with an update as to these items as well as the status of the settlement in general.

No. 23CV02042

MANZO v. PANDEY et al.

**DEFENDANTS DAVID LYNG & ASSOCIATES, INC. AND GENEVA
LAWLESS'S MOTION FOR MONETARY, EVIDENTIARY AND
TERMINATING SANCTIONS**

Defendants/cross-complainants David Lyng & Associates, Inc. and Geneva Lawless's motion is granted. The court orders plaintiffs to fully comply with its order of March 27, 2026, no later than August 21, 2026, and to pay defendants David Lyng & Associates and Geneva Lawless additional monetary sanctions of \$1,000.00, payable by that same date. In the event plaintiffs again fail to timely comply with these orders, the court intends to impose evidentiary and/or terminating sanctions on motion by defendants.

Plaintiffs Michael Manzo and Cynthia Manzo ("plaintiffs") were ordered to serve code-compliant verified responses and documents without objections to form interrogatories (set one), special interrogatories (set one), and request for production of documents (set one) no later than April 24, 2026. Further, the court deemed admitted all matters specified in the requests for admission, set one, which would become the order of the court if plaintiffs failed to serve, before the hearing on the motion, proposed code-compliant responses to the requests for admissions.

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(Code Civ. Proc., section 2033.280, subd. (b).) The court also imposed monetary sanctions against plaintiffs in the amount of \$2,000.00, payable no later than April 24, 2026. (Code Civ. Proc., §§ 2030.290, subd. (c), 2033.280, subd. (c).)

On April 24, 2026, plaintiffs served amended responses to the requests for admissions, but failed to comply with the remainder of the court order. Defendants now move for terminating sanctions in the form of striking the second amended complaint against these defendants, or in the alternative, further monetary sanctions of \$6,000.00 (14 hours at \$375.00/hour).

Counsel for plaintiffs declares his clients served responses to the interrogatories and requests for production on July 1, 2026, but did not pay the sanctions until very recently (mistakenly believing the court's ruling became an order only upon counsel's compliance with CRC 3.1312 or Local Rule 3.108). He declares he sent the check on or about July 27, 2026. Counsel concedes his clients have not produced any documents yet, as "the process of going through the documents is taking a long time." (Eschen Declaration, ¶¶ 2-5.)

No. 26CV00545

LOPEZ-CISNEROS v. YANNONE

DEFENDANT'S MOTION TO STRIKE COMPLAINT

The motion is granted.

This is a motor vehicle collision case. Plaintiff claims defendant caused the December 30, 2024 collision on Lockwood Lane in Scotts Valley by speeding and using a cell phone while driving. Plaintiff states claims for negligence, negligence per se, and statutory liability pursuant to Vehicle Code sections 17150 et seq. ("permissive use doctrine").

Defendant seeks to strike plaintiff's claims for punitive damages on the ground he has failed to plead any cause of action supporting malice, oppression, or fraud.

California Code of Civil Procedure section 436, provides: "[t]he court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading." "Motions to strike can be used to reach defects in or objections to pleadings that are not challengeable by demurrer. Complaints, cross-complaints, answers and demurrers are all subject to a motion to strike (Code Civ. Proc., § 435, subd. (a)(2)).¹ The grounds for a motion to strike

¹ All statutory references are to the Code of Civil Procedure, unless otherwise stated.